

24VECV06183 24VECV06183

County: los-angeles
Division: Civil Law and Motion
Department: U
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Case Number: 24VECV06183 Hearing Date: August 14, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MARIA RODRIGUEZ ACOSTA, an individual; and DAVID AGUILAR GUZMAN, an individual,

Plaintiffs,

vs.

FORD MOTOR COMPANY; GALPIN FORD; and DOES 1-10, inclusive,

Defendants.

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CASE NO: 24VECV06183

[TENTATIVE] RULING RE: DEFENDANT FORD MOTOR COMPANY'S MOTIONS TO COMPEL PLAINTIFFS' DEPOSITIONS

Dept. U

8:30 a.m.

August 14, 2026

BACKGROUND

This case is a lemon law action.

On December 10, 2024, Plaintiffs Maria Rodriguez Acosta and David Aguilar Guzman filed their original complaint against Defendants Ford Motor Company ("Ford") and Galpin Ford ("Galpin").

On January 14, 2025, Ford served its notice of taking Plaintiffs' depositions, with depositions to occur on April 16, 2025. (Pisciotta decl., ¶ 3.)

On March 24, 2025, Plaintiffs filed their first amended complaint.

On April 9, 2025, Plaintiffs objected to their first deposition notices. (Pisciotta decl., ¶ 4.)

On August 25, 2025, Plaintiffs filed their second amended complaint (the "SAC"), alleging: (1) violation of Civil Code section 1793.2 (d) against Ford; (2) violation of Civil Code section 1793.2 (b) against Ford; (3) violation of Civil Code section 1793.2 (a)(3) against Ford; (4) breach of the implied warranty of merchantability in violation of Civil Code sections 1791.1, 1794, and 1795.5 against Ford; (5) negligent repair against Galpin; and (6) fraudulent inducement-concealment against Ford.

On September 29, 2025, Ford served amended notice of taking Plaintiffs' depositions, with depositions set to occur on December 15, 2025. (Pisciotta decl., ¶ 5.)

On December 10, 2025, Plaintiffs objected to their second deposition notices. (Pisciotta decl., ¶ 6.)

Also on December 10, 2025, Ford served second amended notice of taking Plaintiffs' depositions, with depositions set to occur on February 13, 2026. (Pisciotta decl., ¶ 7.)

On December 16, 2025, Plaintiffs' counsel confirmed the February 13, 2026 deposition date. (Pisciotta decl., ¶ 8.)

On December 30, 2025, the Court overruled in part and sustained in part Ford's demurrer to the SAC.

On February 10, 2026, Plaintiffs objected to their third deposition notices. (Pisciotta decl., ¶ 9.)

On February 13, 2026, counsel for Ford appeared for the mutually agreed-on depositions and took Plaintiffs' non-appearances. (Pisciotta decl., ¶ 10.)

On June 10, 2026, Ford served third amended notice of taking Plaintiffs' depositions, with depositions set to occur on July 1, 2026. Plaintiffs neither objected nor appeared for their fourth noticed depositions. (Pisciotta decl., ¶¶ 11-13.)

On July 1, 2026, Ford filed its motions to compel Plaintiffs' depositions.

On August 7, 2026, Plaintiffs filed an opposition brief clarifying that Acosta's deposition is already set for August 14, 2026. The opposition brief provides no clarification as to whether Guzman's deposition has also already been scheduled.

As of 10:30 A.M. on August 12, 2026, nothing further had been filed in this matter by any party.

RULING

The motions are granted. Plaintiffs are ordered to submit for deposition no later than Friday, September 11, 2026, or on a later date mutually agreeable to both sides. Ford is awarded sanctions against Plaintiffs jointly and severally in the requested amount of \$2,430.00.

LEGAL STANDARD

Where a would-be deponent fails to appear, proceed with, or produce documents for deposition in a duly noticed deposition notice, the noticing party may move for an order to compel said deponent's attendance, testimony, and/or production for inspection of any document described in the deposition notice. *See* Code Civ. Proc., §§ 2025.230, 2025.450 (a).

DISCUSSION

Ford moves to compel Plaintiffs' depositions. Ford has been attempting to take Plaintiffs' depositions since January 2025. Ford has served no less than four (4) deposition notices on Plaintiffs, all of which failed to secure Plaintiffs' depositions. As to Ford's final deposition notice served on June 10, 2026, Plaintiffs failed to respond. Under these circumstances, Ford is entitled to orders compelling Plaintiffs' depositions. The motions are granted. Plaintiffs are ordered to both submit for deposition no later than Friday, September 11, 2026, or on a later date mutually agreeable to both sides.

While Plaintiffs filed an opposition brief clarifying that Acosta's deposition is already set for August 14, 2026, the opposition brief provides no clarification as to whether Guzman's deposition has also already been scheduled. Ford reasonably needed to file its motion after Plaintiffs missed their last noticed deposition on July 1, 2026. Under these circumstances, an award of sanctions against Plaintiffs is not unjust. Ford is entitled to sanctions. See Code Civ. Proc., § 2025.450 (g)(1).

The Court calculates reasonable attorneys' fees under the lodestar. See *PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1096; see also *Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.

As to each motion, Ford requests \$1,215.00, representing a \$652.25 no-appearance fee, a \$60.00 filing fee, and \$502.75 in attorneys' fees. While Ford does not specify the assigned attorney's hourly rate and/or the number of hours billed, Ford's request is reasonable as to the attorneys' fees portion. Ford is seeking \$1,005.50 (\$502.75 x 2) for work on both motions. 3.0 hours is reasonable for counsel to have spent working on both motions, including time to appear at the hearing thereon. \$1,005.50 / 3 is approximately \$335.00, which is a reasonable hourly rate.

Ford is awarded sanctions against Plaintiffs jointly and severally in the requested amount of \$2,430.00. (\$1,215.00 x 2 = \$2,430.00.) This award is inclusive of non-appearance fees, filing fees, and attorneys' fees (including time to attend the motions' hearing).

CONCLUSION

Defendant Ford Motor Company's motions to compel the depositions of Plaintiffs Maria Rodriguez Acosta and David Aguilar Guzman are GRANTED.

Plaintiffs Maria Rodriguez Acosta and David Aguilar Guzman are ORDERED to both submit for deposition no later than Friday, September 11, 2026, or on a later date mutually agreeable to both sides.

Defendant Ford Motor Company is AWARDED sanctions against Plaintiffs Maria Rodriguez Acosta and David Aguilar Guzman jointly and severally in the total amount of \$2,430.00.

Defendant Ford Motor Company is ORDERED to give notice.

DATED: August 14, 2026

Lee S. Arian

Judge of the Superior Court